

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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HAYWARD GATCH,

Plaintiff,

**COMPLAINT AND DEMAND
FOR A JURY TRIAL**

-v-

Index No. **15-CV-8714**

THE CITY OF NEW YORK; New York City Police
Department Officer ("P.O.") DORIAN FAULK
(Shield No. 17174), and P.O. JOHN DOES 1-4, in their
individual capacities,

Defendants.
-----X

Plaintiff Hayward Gatch, by his attorneys Gillian Cassell-Stiga and David B. Rankin of Rankin & Taylor, PLLC, for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the First, Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff Hayward Gatch's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally assaulted plaintiff in manner constituting a gross abuse of authority. By reason of defendants' actions, plaintiff was deprived of his constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§1331, 1343(a)(3-4). This action is brought pursuant to 42 U.S.C. §§1983 and 1988 and the First, Fourth and Fourteenth Amendments to the Constitution of the United States.
5. Venue is proper pursuant to 28 U.S.C. §1391(b)(2) in that plaintiff's claim arose in the Southern District of New York.
6. In accordance with the requirements of New York General Municipal Law § 50-e, Mr. Gatch filed a timely Notice of Claim with the New York City Comptroller on or about September 29, 2014. Thus, this Court has supplemental jurisdiction over Mr. Gatch's claims under New York law because they are so related to the within federal claims that they form part of the same case or controversy pursuant to 28 U.S.C. § 1367(a).
7. Mr. Gatch's claims have not been adjusted by the New York City Comptroller's Office.
8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. §1988.

PARTIES

9. Plaintiff Hayward Gatch is, and was at all times relevant to this action, a resident of the State of Rhode Island.
10. Defendant The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and police officers as said risks attach to the public consumers of the services provided by the NYPD.

11. NYPD Officer (“P.O.”) Dorian Faulk (Shield No. 17174) (“Faulk”) and P.O. John Does 1-4, (referred to collectively as the “individual defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.
12. The individual defendants are being sued in their individual capacities.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
14. The individual defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff’s rights.
15. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
16. The true names and shield numbers of defendants P.O. John Does 1-4 are not currently known to the plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers

¹ By identifying said defendants as “John Doe” or “Richard Roe,” plaintiff is making no representations as to the gender of said defendants.

of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

STATEMENT OF FACTS

17. At approximately 1:25 p.m. on September 22, 2014, Mr. Gatch was arrested by P.O. Dorian Faulk at the corner of Exchange Alley and Broadway in New York County in the State of New York.
18. Mr. Gatch had been filming the arrest of a demonstrator while standing on a barricaded street.
19. Mr. Gatch felt himself get knocked to the ground by an officer who appeared to be struggling with the pedestrian arrestee. Mr. Gatch's head hit a barricade while he fell to the ground.
20. While on the ground and dazed, Mr. Gatch heard someone shout in sum and substance "cuff him" and "stop resisting."
21. P.O. Faulk and P.O. John Does 1-4 grabbed Mr. Gatch and placed him in handcuffs. Although Mr. Gatch did not resist the arrest or application of handcuffs, the handcuffs were intentionally tightened to the extreme causing Mr. Gatch severe pain.
22. Mr. Gatch immediately informed the officers including his arresting officer that the handcuffs were too tight, and requested the handcuffs be removed and reapplied. His request was ignored.
23. Mr. Gatch informed the officers around him, including the individual defendants, throughout his arrest processing that the handcuffs were too tight and were causing him extreme pain. No officer responded to his request.
24. At the precinct, the handcuffs were removed and injury to Mr. Gatch's wrists was visually apparent.

- 25. Mr. Gatch requested medical attention numerous times.
- 26. Nearly an hour later medical personal finally arrived to bring Mr. Gatch to a hospital.
- 27. P.O. John Does 1-4 failed to intervene or prevent the force used against Mr. Gatch.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. §1983
(Against the individual defendants)**

- 28. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
- 29. By their conduct and actions in using excessive force, retaliating against the exercise of plaintiff's right to speech, and by failing to intercede to prevent the complained of conduct, the individual defendants, acting under color of law and without lawful justification, intentionally, and/or with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed through 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
- 30. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, loss of property, costs and expenses, and was otherwise damaged and injured.

**SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)**

- 31. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

32. At all times material to this complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
33. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants P.O. Faulk and P.O. John Doe 1-4 and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline defendants P.O. Faulk and P.O. John Doe 1-4.
34. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
35. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

36. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
37. By the actions described above (namely, forwarding false information to other police officers, resulting in the custodial arrest of plaintiff), the individual defendants did inflict assault and battery upon plaintiff. The acts and conduct of individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

38. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiff pursuant to the state common law doctrine of respondeat superior.

39. As a result of the foregoing, plaintiff suffered emotional distress, humiliation, and was otherwise damaged and injured.

FORTH CLAIM
NEGLIGENT HIRING, SCREENING, SUPERVISION, AND RETENTION
UNDER THE LAWS OF THE STATE OF NEW YORK
(Defendant the City of New York)

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. Defendant the City of New York negligently hired, screened, retained, supervised, and trained the individual defendants.

42. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

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JURY DEMAND

43. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

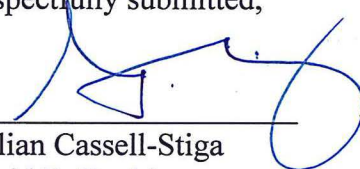
WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
November 4, 2015

Respectfully submitted,

By:



Gillian Cassell-Stiga
David B. Rankin
Rankin & Taylor, PLLC
Attorneys for the Plaintiff
11 Park Place, Suite 914
New York, New York 10007
t: 212-226-4507